

13. **Vague provision.** — It has been held in marriage articles that a trust to *provide suitably* for the settlor's younger children is not too vague to be executed, but the Court will direct an enquiry what the provision should be (*f*).

14. **How "heirs of the body" construed in executory trusts in wills.** — Next as to *wills*; and here, as no presumption arises *à priori*, that "*heirs of the body*" were intended as words of purchase, if the executory trust of real estate be to "A. and the heirs of his body" (*g*), or to "A. and the heirs of his body and their * heirs" (*a*), or to "A. for [*118] life, and after his decease to the heirs of his body" (*b*), the legal and ordinary construction will be adopted, and A. will be tenant in tail. So, where the estate was directed to be settled on the testator's "daughter and her children, and, if she died without issue," the remainder over, the Court said, that, by an immediate devise of the land in the words of the will, the daughter would have been tenant in tail, and in the case of a voluntary devise the Court must take it as they found it, though upon the like words in marriage articles it might have been otherwise (*c*).

"**A. for life, and heirs male of his body, and their heirs male successively.**" — And where a testator directed lands to be settled on his "nephew for life, remainder to the heirs male of his body, and the heirs male of the body of every such heir male, severally and successively one after another as they should be in seniority of age and priority of birth, every elder and the heirs male of his body to be preferred before every younger," Lord Cowper said, the nephew took by a voluntary devise, and, although executory, it was to be taken in the very words of the will as a devise, and was not to be supported or carried further in a Court of Equity than the same words would operate at law in a voluntary convey-

(*f*) *Brenan v. Brennan*, 2 I. R. Eq. 266.

(*g*) *Harrison v. Naylor*, 2 Cox, 274; *Bagshaw v. Spencer*, 1 Ves. 151, *per* Lord Hardwicke; *Marshall v. Bousfield*, 2 Mad. 166.

(*a*) *Marryat v. Townley*, 1 Ves. 104, *per* Lord Hardwicke.

(*b*) *Blackburn v. Stables*, 2 V. & B. 370, *per* Sir W. Grant; *Seale v. Seale*, 1 P. W. 290; *Meure v. Meure*, 2 Atk. 266, *per* Sir J. Jekyll.

(*c*) *Sweetapple v. Bindon*, 2 Vern. 536.